

M/s Mohit Petrochemicals Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 January 2025 · WRIT - C No. 64540 of 2009 · **Writ dismissed for default; interim stay on additional security discharged.**

HEADNOTE

A writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005, in which the discom had been restrained from demanding that security on the strength of a similar 2009 interim order, was dismissed for default when none appeared for the petitioner. The interim order stood discharged. Para 4.20 was not construed.

FACTUAL SUMMARY

M/s Mohit Petrochemicals Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand notice dated 23 April 2009 for additional security, said to be asked under para 4.20 of the U.P. Electricity Supply Code, 2005. On 27 November 2009 the Court listed the writ with similar 2009 matters and, following a stay in W.P. No. 30582 of 2009 (M/s Vehlina Steels & Alloys Pvt. Ltd.), restrained the discom from demanding additional security until further orders. On 7 January 2025 none appeared for the petitioner even on the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed for default, and the 2009 interim restraint on that demand was discharged. The Court did not decide whether para 4.20 authorised the demand. ¶ 2-3

PRINCIPLE TAGS

additional-security A writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005, in which the discom had been restrained from demanding that security on the strength of a similar 2009 interim order, was dismissed for default when none appeared for the petitioner.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD LAWFULLY BE DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in the 2009 writ and met only with an interim restraint following a similar stay; the 2025 default dismissal did not decide the point.